

In September 2012, the former Minister for Agriculture, Fisheries and Forestry, commissioned an independent review of the policy and legislation governing the Commonwealth's fisheries management system – 'Review of Commonwealth Fisheries: Legislation, Policy and Management' (Fisheries Management Review).

Mr David Borthwick AO PSM was appointed to undertake the review, which was publicly released in March 2013. There were a number of opportunities for [stakeholder input](#) to the review.

- [Review of Commonwealth Fisheries: Legislation, Policy and Management PDF](#)  [2.6 MB, 179 pages]
- [Review of Commonwealth Fisheries: Legislation, Policy and Management DOC](#)  [1.2 MB, 179 pages]

Context, objectives and scope of the review

The approach to Commonwealth fisheries management is based around legislation that was enacted in 1991. Whilst there have been ongoing improvements and updates and policy has continuously evolved, a major review taking into account community views and wider resource management issues has not occurred during that time.

The Fisheries Management Review was asked to consider the broad fisheries management policy and legislation framework to test whether it is in line with Government, industry and community expectations. It was also asked to identify whether there is a need to adjust Australia's Commonwealth fisheries management objectives and the underlying policy, research, legislative and regulatory framework.

Within this context, the review was specifically asked to:

- Recommend changes to the Acts that clearly establish the Fisheries Management Act 1991 as the lead document in fisheries management, and that all aspects of environmental, economic, and social consideration, and the relevant planning processes required to be incorporated into the Acts, in a co-ordinated way.
- Recommend any necessary changes to the Acts that affirm the powers of a Minister to take advice, and make decisions, with the full scope of the precautionary principle available within the Fisheries Management Act 1991, and that same definition of the precautionary principle apply in both the Fisheries Management Act 1991 and the Environment Protection and Biodiversity Conservation Amendment 1999.
- Consider the need for modernising Commonwealth fisheries resource management legislation and approaches including penalty provisions, licence cancellations, the use of modern technology and co-management. Consideration of cost recovery arrangements will include consideration of the degree to which cost recovery might impact on the management of fisheries including investment in research and stock assessment.